



File No.: EXP202209199

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On June 20, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against CARRETERAS Y ASFALTOS, S.L. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on December 19, 2023, the proposal for resolution was issued, which is transcribed below:

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File No.: EXP202209199

PROPOSAL FOR RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for the Protection of Data and based on the following:

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on August 3, 2022. The complaint is directed against the company CARRETERAS Y ASFALTOS, S.L. with NIF B87026340 (hereinafter, the respondent). The reasons for the complaint are as follows:

“that they work for the respondent and that in the offices of said entity there are installed video surveillance cameras, which capture both image and audio, without being signposted by the required informative signs of the monitored area and without having been informed about them to the workers”—file no. 1—.

They provide images of the location of one of the cameras on top of a cabinet (Evidence Annex No. 1).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 08/09/22, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 12/09/22, as recorded in the information system of this agency.

No response has been received to this forwarding letter, nor has any measure been adopted to clarify or regularize the described system.

THIRD: On November 3, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On June 20, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

The Initiation Agreement was subject to administrative notification electronically, as recorded in the Administrative File on 23/06/23.

FIFTH: On 03/08/23, a written statement of allegations was received from the respondent in the

following terms:

"..that there is a spirit of resentment from the former worker (complainant) considering a spurious account in their statements before the AEPD.

My client contracted with ***COMPANY.1 for the video surveillance of its premises at ***ADDRESS.1 (installation carried out in accordance with current legislation) and, on that same day, the workers were informed, providing each of them with the keys and security codes for the alarm.

It is also FALSE that the camera is not signposted; what happens is that A.A.A. was very concerned that this sign would not be visible in the photograph.

Photographs of the sign installed on the wall next to the furniture and another at the entrance of the premises are provided (...).

Again, it is NOT true that the camera is continuously recording A.A.A.; this can be deduced from the photograph provided by the complainant since it is clearly observed that it is not directed at their workstation (...).

For all of the above, they REQUEST that this written statement of allegations be considered presented and that, accordingly, they agree not to impose any sanction (...).

SIXTH: A list of documents in the procedure is attached as an annex, reminding full access to the documentation contained in the administrative file.

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From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 03/08/22, in which the presence of an image capture device (Web-cam) in the workplace is reported, without adequately informing the entire group of workers of the company. Documentary evidence is provided showing the presence of the Web-cam in the workplace, monitoring the specific area in question (Documentary Evidence I).

Second. It is established that the main responsible entity for the installation of the device is Carreteras y Asfaltos S.L, which does not deny the presence of the device in question.

Third. It is established that there is a device (Web-cam) present in the complainant's workplace, without any information provided regarding its purpose, being disproportionately oriented towards the workspace.

Fourth. It is established that the entity being complained about only has a sign from the installing company (***COMPANY.1) where the data processing responsible party or the purpose of the system in question is not indicated.

Fifth. No document (e.g., contract) has been provided that includes the corresponding data protection clause or an informative document regarding the presence of cameras or image capture devices to the entire group of workers.

Sixth. No copy of the contract with the installing company has been provided, detailing the technical characteristics of the system (number of cameras, specifications, etc.).

Seventh. It has not been proven that the device captured private conversations of the affected individuals, nor that any such conversations were used.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the actions will be archived.

II

Before addressing the substance of the matter, it should be noted that the proposed witness testimonies to shed light on the presence of image capture devices must be dismissed, as they are workers whose subjective assessment may be influenced by their employment status. What is relevant in this case is the provision of contracts informing them of the presence of any type of image capture device.

Similarly, the signs provided only indicate the installation of the system carried out by a well-known security company; however, no evidence has been provided regarding how the entire group of employees was informed about the purpose of the camera in question, the reason for its presence in the workplace, or how to exercise their rights under the current GDPR.

The lack of any objective evidence proving the recording of private conversations undermines the initial accusation in the Initiation Agreement of Article 6 GDPR.

The right to the presumption of innocence in this case has not been affected, as the defendant had the opportunity to provide all necessary documentation, and the evidence presented has been duly assessed, with the statements of both parties evaluated in light of the evidence provided, respecting the right to contradiction.

III

In this case, the complaint dated 03/08/22 is analyzed, through which the presence of camera(s) is reported without informing that they affect personal data, including audio recording.

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From the analysis of the evidence provided, it is clearly inferred that there is a web camera in the workplace installed without any information regarding its presence.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals and/or companies are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

Regarding the installation of security cameras in companies for work monitoring, labor regulations establish, in Article 20 of the Workers' Statute, that "the employer may adopt the measures they deem most appropriate for monitoring and control to verify compliance by the worker with their obligations and labor duties, taking due consideration of their human dignity and considering the actual capacity of disabled workers, if applicable."

The sounds and images obtained are protected by the Organic Law on Data Protection (hereinafter LOPDGDD-LO 3/2018, December 5). Thus, the filming carried out by surveillance cameras and/or equivalent devices, if recorded, constitutes what current regulations qualify as "data processing," which

falls squarely within the scope of action of this Agency regarding video surveillance.

III

In accordance with the evidence available in this sanctioning procedure, it is considered that the respondent has installed a small device resembling a web camera, which affected the workers of the company in the performance of their activities, processing personal data.

It should be specified that this organization is not unaware of the presence of such devices, which do not constitute a proper “ad hoc” system, but are equated to them as they are “an analog technical means” that are used in most cases as an excessive control measure in reserved spaces, being unrelated in any case to the functions of protecting the facilities and/or belongings of the Center. The known facts constitute an infringement attributable to the respondent for violating the content of Article 5.1 c) of the GDPR.

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Article 72, paragraph 1, letter a) establishes a limitation period of three years for “infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV

The complainant states that the workers of the company have not been informed of the adopted measure, nor is there any informative sign to that effect.

The presence of cameras in workplaces must be communicated through informative signs, and the workers must be aware of their existence, as well as the purpose of the installation, respecting their privacy, and they cannot be used for excessive control or even for recording private conversations. These types of devices are aimed at preserving the security of the Center (facilities and workers), as well as verifying their obligations, respecting their rights in accordance with Article 20.3 of the Workers' Statute, including the right to the protection of their personal data.

“The right to information cannot be omitted by the company, as it is a right attached to the possibility of processing personal data in the context of labor relations, and cannot be justified in any way by the business interest of controlling labor activity through surprise systems or unannounced data processing that ensure maximum effectiveness in the purpose of surveillance, which is limited by the fundamental rights of workers.”

Article 22, paragraph 4 of the LOPDGDD states: “The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device.”

The signs provided by the respondent in documentary evidence dated 03/08/23 are not the approved signs required by current regulations, as they only inform about the installing company of the system—***COMPANY.1--.

The aforementioned facts imply an infringement of the content of Article 13 of the GDPR, as there are no informative signs with an effective address to which one could direct inquiries or indicate, if applicable, the main responsible party for the processing of the data.

Article 13 of the GDPR “Information to be provided when personal data are obtained from the data subject.”

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1. When personal data relating to an interested party is obtained, the data controller, at the time of obtaining such data, shall provide all the information indicated below: a) the identity and contact details of the controller and, where applicable, of their representative; b) the contact details of the data protection officer, if applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements “shall prescribe after three years” and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

V

Article 83.5 of the GDPR states the following: “Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

b) The rights of the data subjects under Articles 12 to 22 (...).

In determining the sanction, it is taken into account that it is a consolidated company in the sector, although the poor orientation of the camera installed in a "reserved" space constitutes an infringement of third-party rights that disproportionately affects their privacy, considering the conduct as gross negligence, which justifies a proposed sanction of €3,000 (€2,000 + €1,000), with the amount of €2,000 corresponding to the infringement of Article 5.1 c) for being in a place where the activity of the employees is developed disproportionately and €1,000 for the infringement of Article 13 for not having the required approved signage for that purpose, a sanction situated at the lower end of the scale for this type of conduct and in accordance with the established facts, where it has been determined that no conversation or ambient sound has been recorded.

VII

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

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It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the opening of further administrative sanctioning proceedings.

Among the measures to be adopted by the respondent, it is deemed necessary to place approved signs indicating that it is a , as well as to inform all employees or their representatives of the purpose of the presence of the cameras in the work area in case of maintaining the presence of a webcam as a control device, and finally, to clarify everything necessary regarding the control in the spaces (orientation towards a specific workstation or computer screen) that must comply with the regulations, that is, a mere control of the space without permanent invasion of the activity of any employee of the

company.

In view of the above, the following

PROPOSAL FOR RESOLUTION

- That the Director of the Spanish Agency for Data Protection sanction CARRETERAS Y ASFALTOS, S.L., with NIF B87026340, for an infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €3,000 (€2,000 + €1,000).

- That the Director of the Spanish Agency for Data Protection orders CARRETERAS Y ASFALTOS, S.L., with NIF B87026340, to comply with the measures outlined, pursuant to Article 58.2.d) of the GDPR, within the specified timeframe, by demonstrating compliance with the indicated aspects.

☐ Placement of approved signage in accordance with current regulations informing of the purpose, responsible party, and how to exercise rights within the framework of the current GDPR.

☐ Information to all employees of the company regarding the purpose of the installed device through a legally valid means (e.g., informative note, contractual clause, etc.).

☐ Reorientation, if applicable, of the camera to cover the entire work area, avoiding fixed direction towards a specific workstation or computer screen disproportionately.

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, you are informed that you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a 20% reduction of the amount. With the application of this reduction, the sanction would be established at €2,400, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

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The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, you must make it effective by depositing it into the restricted account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the sanction amount. You must also send the proof of deposit to the General Sub-Directorate of Inspection to proceed with closing the file.

By virtue of this, you are notified of the above, and the procedure is made known to you so that within TEN DAYS you may allege whatever you consider in your defense and present the documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

926-070623

R.R.R.

INSPECTOR/INSTRUCTOR

ANNEX

Index of the file EXP202209199

03/08/2022 Complaint from A.A.A.

08/09/2022 Transfer of complaint to CARRETERAS Y ASFALTOS, S.L.

03/11/2022 Communication to A.A.A.

23/06/2023 A. opening to CARRETERAS Y ASFALTOS, S.L.

26/06/2023 Info. Claimant to A.A.A.

04/07/2023 Request for a copy of the file from B.B.B.

31/07/2023 Sending of documents to CARRETERAS Y ASFALTOS, S.L.

03/08/2023 Allegations from CARRETERAS Y ASFALTOS S.L.

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SECOND: On January 15, 2024, the respondent has proceeded to pay the sanction in the amount of

2400 euros making use of the reduction provided in the resolution proposal transcribed above.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the resolution proposal.

FOURTH: In the resolution proposal transcribed above, the facts constituting the infringement were established, and it was proposed that, by the Director, measures be imposed on the responsible party to adjust their actions to the regulations, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be determined in the notification of initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

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The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202209199, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER CARRETERAS Y ASFALTOS, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the resolution proposal transcribed in this resolution, within one month from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to CARRETERAS Y ASFALTOS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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